

The Allahabad High Court Private Secretaries (Conditions of Service) Rules, 2001

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State of Uttarakhand - Act

The Allahabad High Court Private Secretaries (Conditions of Service) Rules, 2001

UTTARAKHAND

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The Allahabad High Court Private Secretaries (Conditions of Service) Rules, 2001

Rule THE-ALLAHABAD-HIGH-COURT-PRIVATE-SECRETARIES-CONDITIONS-OF-SERVICE-RULES-2001 of 2001

Published on 11 November 2001

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The Allahabad High Court Private Secretaries (Conditions of Service) Rules, 2001

Published vide Anubhag-1 (Uchcha Nyayalaya), Account (A) Section's Notification No. 50, dated 11th November, 2001 and published in U.P. Gazette (Extraordinary), Part 4 (Ka), dated 15th November, 2001 by Notification No. 2047/Saat-Nyay-1-2001-3/99, dated 15th November, 2001

In exercise of the powers conferred by clause (2) to Article 229 of the Constitution, the Chief Justice, after approval of the Governor as required by the proviso to the said clause is pleased to make the following rules regulating the appointment and other conditions of service of the Private Secretaries in the High Court :

1.

Short title, application and commencement.

(1)

These Rules may be called the Allahabad High Court Private Secretaries (Conditions of Service) Rules, 2001.

(2)

They shall apply to all the Private Secretaries of the High Court.

(3)

They shall come into force with effect from the date of their publication in the Official Gazette.

2.

Definitions.

- In these Rules, unless the context otherwise requires,-

(a)

'appointing authority' means the Chief Justice or such other Judge or Officer of the High Court as the Chief Justice may direct;

(b)

'Chief Justice' means the Chief Justice of the High Court;

(c)

'Government' means the State Government of Uttar Pradesh;

(d)

'Governor' means the Governor of Uttar Pradesh;

(e)

'High Court' means the High Court of Judicature at Allahabad;

(f)

'members of service' means the Private Secretaries of the High Court;

(g)

'Registrar General' means the Registrar General of the High Court;

(h)

'service' means all categories of the posts of Private Secretaries which consist of Group "A" and "B" posts.

3.

Strength of Service.

(1)

The number of permanent posts in various categories in the cadre of Private Secretaries of the High Court shall be such as may be determined by the Chief Justice from time to time with the approval of the Governor.

(2)

The ratio between the number of posts in various categories shall be such as prevailing in the corresponding categories of Private Secretaries in the Uttar Pradesh Civil Secretariat.

(3)

The strength of various categories of posts in the service at the time of the commencement of these rules shall be such as is shown in Schedule-I to these rules.

(4)

The Chief Justice may, from time to time, with the approval of the Governor, create such temporary posts, as may be considered necessary.

(5)

The Chief Justice may leave unfilled or may hold in abeyance any vacant post without thereby entitling any person to compensation.

Appointment, Promotion and Confirmation

4.

[Method of selection for all promotional posts.

[Substituted by Notification No. 27/Account (A-1), dated 31st August, 2004, published in U.P. Gazette, Part, dated 4th September, 2004.]

(1)

Selection for promotion to the posts mentioned in Rule 5 shall be made by a Selection Committee constituted by the Chief Justice.

(2)

Criterion for selection shall be seniority subject to rejection of unfit.

(3)

The ex cadre posts mentioned in Rule 6 shall be filled in by the Chief Justice in his sole discretion.]

5.

Source of appointment to various promotional posts.

- Appointment to the various categories of promotional posts in the service shall be made from the following sources, namely:-

(i)

Private Secretary Grade-I. - By promotion from amongst permanent Personal Assistants having to their credit, on the first day of July of the year of recruitment, a minimum period of ten years continuous service, including temporary and officiating service, as Personal Assistant in the establishment of the High Court.

(ii)

Private Secretary Grade-II. - By promotion from amongst Private Secretaries Grade-I who have put in at least five years continuous service (including temporary and officiating service) as Private Secretary Grade-I on the first day of July of the year of recruitment.

(iii)

Private Secretary Grade-III. - By promotion from Private Secretary Grade-II

(iv)

Private Secretary Grade-IV. - By promotion from Private Secretary Grade-III

6.

[Selection to ex-cadre posts.

[Substituted by Notification No. 27/Accounts (A-1), dated 31st August, 2004, published in U.P. Gazette, Part II, dated 4th September, 2004.]

- (i) Joint Principal Private Secretary. - From amongst the Private Secretaries Grade-III, or Private Secretaries Grade-IV.

(ii)

Principal Private Secretary or Principal Private Secretary/Head Private Secretary. - From amongst the Private Secretaries Grade-IV:

Provided that if at any point of time the Chief Justice chooses not to retain the officer as P.P.S. or J.P.P.S., he will be repatriated to his original post and pay scale.]

7.

Pay and Allowances.

(1)

The scales of pay admissible to various categories of posts of Private Secretaries of the High Court at commencement of these rules are given against the concerned post in Schedule-I to these rules.

(2)

Allowances payable to persons holding a post specified in Schedule-I to these rules shall be such as are admissible to the corresponding categories of Private Secretaries in the Uttar Pradesh Civil Secretariat under a Government Order.

(3)

Whenever any revision or modification in the scales of pay or allowances admissible to any categories of Private Secretaries in the Uttar Pradesh Civil Secretariat is made by the Government, the Chief Justice may make admissible such revised or modified scales of pay or allowances to the corresponding categories of the Private Secretaries of the High Court in accordance with the provisions of Art. 229 of the Constitution.

8.

Appointment.

- On the occurrence of vacancies in any categories of posts of Private Secretaries of the High Court the appointing authority shall make appointment of the persons, duly selected, in the order in which their names appear in the select list.

9.

Probation.

(1)

A candidate on initial appointment to a post shall be placed on probation for a period of one year.

(2)

The appointing authority may, for reasons to be recorded in writing, extend the period of probation:

Provided that, in no case, the total period of probation including the extended period of probation shall exceed three years.

(3)

If a probationer fails to make sufficient use of opportunities during his probation or extended period of probation, the appointing authority may revert him to his substantive post.

10.

Confirmation.

- A probationer shall be confirmed at the end of his period of probation, or extended period of probation, if his work and conduct is found to be satisfactory and his integrity is certified.

11.

Seniority.

- Seniority in each category of post of Private Secretaries shall be determined by the date of the order of appointment and where more than one person are appointed together, by the order in which their names are arranged in the said order:

Provided that the seniority of the incumbents inter se as it existed prior to appointment or promotion under these rules, shall be maintained until ordered expressly otherwise by the appointing authority.

Miscellaneous

12.

Regulation of other matters.

(1)

All the persons appointed in any categories of posts of Private Secretaries, shall be subject to the superintendence and control of the Chief Justice.

(2)

In respect of all matter, not provided for in these rules, regarding their conduct, control and discipline, the rules and orders for the time being enforce and applicable to the Government servants holding the corresponding posts in the Government, shall apply to the Private Secretaries of the High Court :

Provided that the said powers exercisable under the rules and orders of the Government by the Governor, shall be exercised by the Chief Justice or by such officer, as he may direct:

Provided further that no order containing modifications, variations or exceptions in rules or orders relating to salaries, allowances, leave or pension shall be made by the Chief Justice except with the approval of the Governor.

13.

Residuary Powers.

- Nothing in these rules shall be deemed to affect the power of the Chief Justice to make such orders, from time to time, as he may deem fit in regard to all matters incidental or ancillary to these rules not specifically provided for herein or in regard to matters as have not been sufficiently provided for.

Provided that if any such order relates to salaries, allowances, leave or pension, the same shall be made with the approval of the Governor.

14.

Repeal.

- The provisions of the Allahabad High Court Officers and Staff (Conditions of Service and Conduct) Rules, 1976, shall, so far as they relate to Private Secretaries of the High Court, cease to operate.

I

Sl. No.

Designation

Number of Posts

Scales of Pay

[Cadre Posts

(i)

Private Secretary (Grade-I)

85

Rs. 6500-200-10,500

(ii)

Private Secretary (Grade-II)

47

Rs. 10,000-325-15,200

(iii)

Private Secretary (Grade-III)

34

Rs. 12,000-375-16,500

(iv)

Private Secretary (Grade-IV)

08

Rs. 14,300-400-18,300

Ex-Cadre Posts:

(i)

Joint Principal Private Secretary

02

Rs. 14,300-400-18,300

(ii)

Principal Private Secretary

02

Rs. 16,400-450-20,000]

[Substituted by Notification NO. 50 [Accounts (A-1), Section], dated 9th December, 2010, published in U.P. Gazette, (Extraordinary), Part 4, Section (Kha), dated 12th July, 2011.]

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